

TENTATIVE RULING

Case: Singh v. Cuna
Case No. CV2024-0951

Hearing Date: August 5, 2026 **Department Thirteen** **9:00 a.m.**

County of Yolo, Mariela Cuna, and Marion Reids' request for judicial notice is **GRANTED IN PART**. (Evid. Code, §§ 452, 453.) While the Court takes judicial notice of the existence of the court documents (nos. 1-18), the Court does not take judicial notice of truth of facts asserted therein except for orders, findings of fact and conclusions of law, and judgments. (*Garcia v. Sterling* (1985) 176 Cal.App.3d 17, 22; see also *People v. Moore* (1997) 59 Cal.App.4th 168, 178; Evid. Code, § 452, subd. (d).) The Court takes judicial notice of the fact asserted in no. 19. (Evid. Code, § 452, subd. (h).)

Defendants' motion for judgment on the pleadings as to the first cause of action (interference with familial relations) is **DENIED**. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) "To support a § 1983 claim of judicial deception, a plaintiff must show that the defendant deliberately or recklessly made false statements or omissions that were material to the finding of probable cause." (*Greene v. Camreta* (9th Cir. 2009) 588 F.3d 1011, 1035, vacated in part on other grounds, citation and quotation marks omitted; see also *Benavidez v. Cty. of San Diego* (9th Cir. 2021) 993 F.3d 1134, 1146.) Based on the detention hearing transcript, the juvenile court found a willful violation of the visitation rules, while also recognizing the role of domestic violence. (Defendants' RJN, Exhibit A, pp. 66-67.) Therefore, the Court finds that defendants have failed to show the alleged false statements regarding the mother's physical injuries were immaterial to the juvenile court's October 28, 2022, order. (*Greene, supra*, 588 F.3d at p. 1035; Complaint, ¶¶ 34, 40, 45, & 57-59.) As to collateral estoppel, defendants have not established the first, second, and third elements. (*Lucido v. Superior Court* (1990) 51 Cal.3d 335, 341.) Specifically, while this Court can take judicial notice of the juvenile court's orders, it cannot take judicial notice of testimony offered during those hearings. (See *Garcia, supra*, 176 Cal.App.3d at p. 22.)

Defendants' motion for judgment on the pleadings as to the second cause of action (interference with parental rights) is **DENIED**. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) Defendants have failed to establish that plaintiffs Kamlesh Singh and Navindra K. Singh's complaint does not state facts sufficient for this cause of action. (See *United States v. Wolf* (9th Cir. 2012) 699 F.3d 1082, 1091-1092; Complaint, ¶¶ 47-48.) Further, like the first cause of action, defendants have not established the first, second, and third elements for collateral estoppel. (*Lucido, supra*, 51 Cal.3d at p. 341; *Garcia, supra*, 176 Cal.App.3d at p. 22.))

Defendants' motion for judgment on the pleadings as to the third cause of action (substantive and procedural due process) is **DENIED**. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) As defendants have not shown the first cause of action is deficient, defendants fail to establish that the complaint does not state facts sufficient for this cause of action. (*Ibid.*)

Defendants' motion for judgment on the pleadings as to the fourth cause of action (violation of Fourth Amendment rights) is **DENIED**. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) Defendants have failed to show that plaintiffs (as the parents) cannot maintain a cause of action, under the Fourth Amendment, based on the removal of their children. (*Keates v. Koile* (9th Cir. 2018) 883 F.3d 1228, 1236-1237.)

Defendants' motion for judgment on the pleadings as to the first, second, third, and fourth causes of action on the ground of absolute immunity is **DENIED**. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) Defendants have not shown that the social workers are entitled to absolute immunity based on the allegations in the complaint. (*Beltran v. Santa Clara County* (9th Cir. 2008) 514 F.3d 906, 908-909; see, e.g., Complaint, ¶¶ 31, 40-41.)

Defendants' motion for judgment on the pleadings as to the fifth cause of action (*Monell* liability) is **DENIED**. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) As the Court is denying defendants' motion as plaintiffs' first, second, third, and fourth cause of action, defendants have failed to show that plaintiffs' complaint does not state facts sufficient for this cause of action. (*Trevino v. Gates* (9th Cir. 1996) 99 F.3d 911, 918.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.